

ten months after it was due was that the parties were engaged in settlement negotiations. Ultimately, settlement had not been reached, and the instant motion was filed. In opposition, Plaintiff argues that the ongoing settlement negotiations between the parties should not be considered good cause for Defendant's late filing. Plaintiff declares that Defendant's settlement offers were not in good faith because the amount only satisfied the requested damages and did not satisfy Plaintiff's attorney's fees and costs. Defendant has demonstrated good cause such that the motion for reclassification may be granted.

Based on the above, the court finds that the Complaint facially indicates an amount for below \$35,000 and is therefore improperly classified. The court further finds that Defendant demonstrates good cause for delay due to prior settlement efforts. The motion is granted. A reclassification fee is not required. (Code Civ. Proc., § 403.040, subd. (c)(2).)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 12, 2026.
(Judge's initials) (Date)

(37)

Tentative Ruling

Re:

Carillo v. Jireh Packing Company
Superior Court Case No. 24CECG01937

Hearing Date:

August 13, 2026 (Dept. 403)

Motion:

Plaintiff's Motion for Final Approval of Class Action Settlement

Tentative Ruling:

To grant, but limit the class representative service award to \$5,000. The difference shall be added to the net settlement to be distributed to the settlement class members. Class counsel shall submit to the court a proposed judgment consistent with the law and motion order within seven days of service of the minute order by the clerk.

To order the parties to return on Thursday, August 12, 2027, at 3:30 p.m. in Department 403 to inform the court of the total amount actually paid to the class members, pursuant to Code of Civil Procedure section 384, subdivision (b), so that the judgment can be amended and the distribution of any cy pres funds can be ordered. Documentation as to the amount paid to class members must be filed on or before July 22, 2027.

Explanation:

"Before final approval, the court must conduct an inquiry into the fairness of the proposed settlement." (Cal. Rules of Court, rule 3.769(g).) "The trial court has broad discretion to determine whether a class action settlement is fair. It should consider factors such as the strength of plaintiffs' case; the risk, expense, complexity and likely duration of further litigation; the risk of maintaining class action status through trial; the amount offered in settlement; the extent of discovery completed and the stage of the proceedings; the experience and views of counsel; the presence of a governmental participant; and the reaction of the class members to the proposed settlement." (Reed v. United Teachers Los Angeles (2012) 208 Cal.App.4th 322, 336.)

The court has vetted the fairness of the settlement through prior hearings, each with its own filings. The settlement here generally meets the standards for fairness, and the class has approved it, with no objections, disputes, or requests for exclusion. Only 18 of 436 notices were undeliverable. The court finds that the method of notice followed, which this court approved at the prior hearing, comports with due process and was reasonably calculated to reach the absent class members:

"Individual notice of class proceedings is not meant to guarantee that every member entitled to individual notice receives such notice," but "it is the court's duty to ensure that the notice ordered is reasonably calculated to reach the absent class members." [Citations.] After such appropriate notice is given, if the absent class members fail to opt out of the class action, such members will be bound by the court's actions, including settlement and judgment, even though those individuals never actually

receive notice. *Cooper*, 467 U.S. at 874, 104 S.Ct. 2794; 7B Charles Alan Wright, Arthur R. Miller & Mary Kay Kane, *Federal Practice and Procedure* § 1789 (2d ed.1986).

(*Reppert v. Marvin Lumber and Cedar Co., Inc.* (1st Cir. 2004) 359 F.3d 53, 56-57 emphasis added.)

Calculation of Class Member Payments

Based on the number of class members known to be participating, Mr. Brown of ILYM Group calculates the net settlement fund to be \$126,900 after deducting attorney fees and costs, the administration costs, and the class representative award. (Brown Decl. ¶ 15.) The highest estimated class payment is \$889.09 and the average payment is \$291.06. (Id. at ¶ 17.)

Payment to Class Representatives

Plaintiff seeks court approval of a \$7,500 payment to the named class representative, Randy Carillo. The court intends to approve a reduced enhancement payment of \$5,000 to the named plaintiff. Plaintiff has submitted a declaration estimating spending 32 hours in assisting counsel. (Carillo Decl., ¶ 13.) Plaintiff spent time in his initial intake, searched for his own documents, reviewed other documents provided to counsel, and made himself available to counsel throughout the litigation. (Ibid.) Plaintiff was employed by defendant for one month. (Id. at ¶ 2.)

There is no clear expense or financial risk or other risk beyond speculation that there would be no compensation received or that a future employer may hold his participation against him. The brevity of plaintiff's employment by defendant does not support the assertion that he gave up other individual claims. The evidence is not persuasive to justify an award of the equivalent of more than \$200 per hour to the named plaintiff where the highest class member payment is expected to be \$889.09.

A more reasonable amount, commensurate with the evidence of risk incurred in conferring a benefit to the class and enough to induce the named plaintiff to participate in the suit, is \$5,000 for the named plaintiff. The remaining \$2,500 set aside as enhancement payment can be added to the common fund for the benefit of all class members.

Attorneys' Fees

The settlement provided that the parties agreed to fees calculated at 35 percent of the gross settlement amount or \$92,750. Counsel has provided evidence of the time expended by the attorneys representing plaintiff and the class throughout this action to support the lodestar amount, as a cross-check of the percentage-based fees requested.

As a general rule, the lodestar method is the primary method for calculating the amount of class counsel's attorney's fees; however, the percentage-of-the benefit approach may be proper when there is a common fund. In some cases, it may be appropriate, when the monetary value of the class benefit can be determined with a

reasonable degree of certainty, such as this one, for the judge to cross-check or adjust the lodestar amount in comparison to a percentage of the common fund to ensure that the fee awarded is reasonable and within the range of fees freely negotiated in the legal marketplace in comparable litigation. (See *Laffitte v. Robert Half Int'l, Inc.* (2016) 1 Cal.5th 480, 488–497; *Roos v. Honewell Int'l, Inc.* (2015) 241 Cal.App.4th 1472, 1490–1494; *In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 557.)

The lodestar analysis is based on a "careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case." (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) As our Supreme Court has repeatedly made clear, the lodestar consists of "the number of hours *reasonably expended* multiplied by the *reasonable* hourly rate. . . ." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095, italics added; *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1134.) Reasonable hourly compensation is the "hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type." (*Id.* at p. 1133.) The hourly rates are high for Fresno County and plaintiff has not explained why he retained out of town counsel.

Counsel have submitted evidence of the hours expended during litigation by two attorneys. Counsel worked 174.36 hours at hourly rates ranging from \$450 to \$600 for an estimated \$98,091 in attorney fees. As noted, these billing rates are high. The court is inclined to adjust the hourly billing rates for counsel to \$500 per hour for Joshua Shirian and \$300 per hour for Aaron Yousefzadeh.

With the adjusted billing rates, the court sets the lodestar at \$78,480. A 1.2 multiplier would result in exceeding the requested amount though. Counsel has provided sufficient evidence and discussion of the risk in pursuing litigation on a contingency basis. As such, the court intends to approve attorney's fees in the requested amount of \$92,750.

Costs

The Settlement Agreement provides that plaintiff's counsel would be reimbursed costs up to \$15,000.00. The request for actual costs of \$14,021.90 is supported with evidence and is approved. (Shirian Decl., Exh. 6.)

Administrator's Costs

The court intends to find the amount of \$7,850 as requested for ILYM Group to be reasonable, and approve the administrator's costs as requested.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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